

Addendum G — Individual Citizens

Application of Strict Liability to
Everyday Civic, Digital, Interpersonal, and Expressive Conduct

Parent Document
S.E.P.A. Discussion Draft v1.0

Companion Addendum
Sector Application Guidance v1.0 (A–F)

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Subsections

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NOTICE: This addendum is a discussion draft companion to S.E.P.A. v1.0 and carries identical advisory status.

ADDENDUM G — INDIVIDUAL CITIZENS

The preceding addenda applied S.E.P.A.'s strict-liability framework to institutional Actors: corporations, governments, organizations, licensed professionals, and educational institutions. Those contexts share a common structural feature — the Actor holds a formally recognized position of power, expertise, or authority, and the asymmetry enabling exploitation is largely institutionalized before any individual decision is made.

This Addendum addresses the most politically sensitive application of the Act: individual citizens operating in the ordinary domains of daily life — digital interaction, civic participation, interpersonal relationships, and public expression. When the law reaches into these domains, it is no longer regulating financial markets or governmental authority. It regulates the asymmetry of the public square and the weaponization of civic infrastructure by private persons.

The analytical framework remains identical. S.E.P.A. does not distinguish between an institutional Actor and an individual Actor. The prohibition in Section 3.1 is unambiguous: no Actor shall engage in, facilitate, design, maintain, or profit from Exploitation as defined in the Act. The definition of Actor in Section 2.3 expressly includes natural persons. The critical questions for individual conduct are therefore:

- (1) Did the individual possess or access a structural, informational, numerical, or relational asymmetry relative to the Vulnerable Party?
- (2) Did the individual's conduct exploit that asymmetry in a manner that produced measurable direct or indirect Harm?
- (3) Was the Harm avoidable had the individual exercised a reasonable duty of care?

SCOPE LIMITATION — DE MINIMIS THRESHOLD

Not every interpersonal conflict, social friction, or unkind act constitutes exploitation under S.E.P.A. The Act requires measurable Harm as quantified by the Exploitation Harm Index. The OHM is required to establish a de minimis threshold below which individual conduct does not trigger civil liability, to prevent the Act from being weaponized for personal litigation. This threshold does not apply where individual conduct produces physical harm, documented psychological harm requiring clinical intervention, or economic harm exceeding a defined floor — all of which are EHI-scoreable regardless of the scale of the individual Actor.

The four subsections that follow address the four primary domains in which individual citizens wield exploitable asymmetry: the digital environment, civic infrastructure, interpersonal trust, and public expression. A fifth subsection addresses the Aggregate Harm Principle — the mechanism by which individual acts that are below the de minimis threshold in isolation become actionable when coordinated into a pattern of collective harm.

G.1 — Digital Conduct: The Asymmetry of the Swarm

SEPA Reference	S.E.P.A. Sections 2.1, 2.2(a)(b), 2.4; Section 3.2
Core Asymmetry	Numerical platform amplification vs. individual target vulnerability; algorithmic reach of a coordinated group vs. lone recipient
Scope	Coordinated harassment; doxxing; swatting; revenge pornography; targeted disinformation campaigns against individuals or local businesses

The internet operates at scale on a massive diffusion of moral responsibility. A thousand individuals can harass a single person into a documentable mental health crisis. Because no single individual delivered the proximate cause of the catastrophic outcome, and because each act — a retweet, a comment, a share — is technically a protected expression, no one is currently held accountable under any existing legal framework. S.E.P.A. closes this gap by treating participation in a coordinated harm-producing campaign as a strict liability event, regardless of the individual's specific contribution to the aggregate outcome.

EXPLOITATIVE BEHAVIOR PATTERN

Behavior: Doxxing (publishing private identifying information to expose an individual to third-party harm); swatting (making false emergency reports to direct armed law enforcement against a target); coordinated harassment campaigns designed to produce psychological harm, professional destruction, or physical threat; revenge pornography; orchestrating localized verifiable disinformation to destroy a local business or individual's reputation.

Application: If a citizen uses a digital platform to orchestrate, initiate, or willingly participate in a targeted campaign that results in measurable psychological, physical, or economic harm to a Vulnerable Party, they have exploited the algorithmic amplification of the network — a structural asymmetry between the organized group and the isolated individual target. The defense of 'it was just a joke,' 'I only retweeted it,' or 'I didn't know what would happen' is voided by the strict liability standard. Motivation is irrelevant. The measurable harm is the triggering event. Participation in the campaign — at any level that contributed to the aggregate harm — establishes liability.

Systemic Shift / Penalty: Individual participants are strictly liable for a proportional share of the victim's remediation costs — therapy, security measures, lost wages, and business losses attributable to the campaign. Organizers bear primary liability for the full EHI-calculated harm. Because 'recurrence without caring' is a trigger for systemic removal under Section 5.2(b), repeat offenders who demonstrate a documented pattern of digital exploitation face a legally enforced, permanent revocation of access to algorithmically amplified platforms. This is not a restriction on private speech — it is the removal of a structural asymmetry tool from an Actor who has demonstrated its use to produce harm.

DRAFTING NOTE — Platform Co-Liability

Individual digital exploiters rarely operate without the enabling architecture of the platform that hosts, amplifies, and monetizes their conduct. S.E.P.A. treats the platform as a co-liaible Actor where the platform's algorithmic design demonstrably amplified the harmful campaign beyond what organic reach would have produced. The individual user's liability is assessed against their direct contribution; the platform's liability is assessed against the amplification delta. This creates a structural incentive for platforms to detect and suppress coordinated harm campaigns rather than profit from the engagement they generate.

G.2 — Civic Actions: Weaponizing Bureaucratic Infrastructure

SEPA Reference	S.E.P.A. Sections 2.1, 2.2(a)(b)(e), 3.3(f); Addendum C.1
Core Asymmetry	State monopoly on violence vs. individual vulnerability to armed response; civic procedural access vs. marginalized community dependency on housing
Scope	Bad-faith emergency service calls; NIMBYism as coordinated civic exploitation; zoning board weaponization

Civic infrastructure — emergency services, zoning boards, permitting processes, legislative comment periods — exists to serve the public interest. When individual citizens weaponize that infrastructure against specific Vulnerable Parties for reasons of racial, economic, or social control, they are not exercising civic rights. They are exploiting the structural power of the state as a personal instrument of harm, while insulating themselves behind the fiction of neutral procedural participation.

EXPLOITATIVE BEHAVIOR PATTERN

Behavior: Bad-faith 911 calls directing armed law enforcement against minority citizens for the act of existing in a public space; coordinated NIMBY campaigns using frivolous environmental, historical preservation, or procedural objections to block affordable housing, knowing the mathematical consequence is sustained or worsened homelessness in the affected community.

Application: When a citizen calls the police, knowing no actual crime is occurring, they are exploiting the state's monopoly on violence as a personal weapon of social or racial control. The asymmetry is explicit: the caller has access to the state's enforcement apparatus; the target is a Vulnerable Party whose physical safety is placed in jeopardy by the call. The indirect harm — psychological trauma, civil rights violation, and any physical harm inflicted by the police response — is directly traceable to the caller's behavioral anomaly. In local governance, a coalition of property owners who repeatedly stall affordable housing through procedurally frivolous objections — knowing it will mathematically worsen homelessness — is not exercising legitimate civic engagement. It is exploiting civic procedure for financial extraction: preserving personal property values at the documented expense of the housing-insecure population.

Systemic Shift / Penalty: The bad-faith 911 caller is strictly liable for the psychological trauma, civil rights violation, and any physical harm resulting from the call. Documented recurrence triggers criminal liability under Section 5.2(b). In the housing context, individual participants in coordinated NIMBY campaigns that demonstrably prolong a housing crisis become financially liable for a proportional share of the remediation costs of that crisis — including the cost of the housing units their campaign prevented. The civic right to object does not include the right to cause measurable harm to a Vulnerable Party through the exercise of that objection.

CONSTITUTIONAL NOTE — Petition Clause

The First Amendment's Petition Clause protects the right to petition the government for redress of grievances. S.E.P.A. does not restrict the right to petition; it attaches liability to the measurable harm produced by petitions made in bad faith or with knowledge that the petition's success will produce exploitative outcomes for Vulnerable Parties. The distinction is between legitimate civic disagreement — which may cause harm as a side effect of good-faith participation — and the deliberate weaponization of civic process as an instrument of social control or financial extraction, where the harm to the Vulnerable Party is the intended or knowingly foreseeable outcome.

G.3 — Interpersonal Conduct: The Asymmetry of Trust

SEPA Reference	S.E.P.A. Sections 2.1, 2.2(a)(b)(c), 2.4; Section 5.1(a)
Core Asymmetry	Relational trust vs. vulnerability of emotional or financial dependency; social standing vs. community susceptibility
Scope	MLM predatory recruitment; reproductive coercion; concealment of communicable disease; credit exploitation within relationships

Trust is a structural asymmetry. When one person extends trust to another — in a relationship, a community, a friendship, a faith context — they become a Vulnerable Party in the precise sense S.E.P.A. defines: their capacity to refuse, negotiate, or exit the relationship is materially constrained by the emotional, social, or financial dependency that the trust relationship itself creates. The Act extends into these intimate domains not to regulate relationship dynamics as such, but to address the specific behavioral anomaly of exploiting a trust relationship to extract value or cause harm.

EXPLOITATIVE BEHAVIOR PATTERN

Behavior: Predatory multi-level marketing recruitment exploiting existing social, religious, or community relationships to ensnare financially desperate neighbors in mathematically guaranteed loss structures; exploiting an intimate relationship to destroy a partner's credit standing; reproductive coercion — deliberately sabotaging a partner's contraception or concealing a pregnancy-relevant condition; concealing a communicable disease from a sexual partner; exploiting a position of social authority to extract financial, sexual, or labor value from dependent community members.

Application: S.E.P.A. pulls the concept of exploitation out of the boardroom and into the living room. If an individual exploits their standing in a church, community group, or social network to recruit financially desperate neighbors into an MLM structure whose mathematical architecture guarantees losses for all but the top tier of recruiters, they are strictly liable for the extracted wealth. The social trust relationship is the asymmetry; the financial harm is the measurable outcome; the behavioral anomaly is the exploitation of that asymmetry for gain. In intimate relationships, if one partner deliberately sabotages the other's contraception or conceals a communicable disease, they have weaponized the trust asymmetry of physical and emotional intimacy to cause direct, irreversible physical and psychological harm. The state no longer treats these as purely private civil disputes requiring costly personal litigation.

Systemic Shift / Penalty: These are classified as systemic behavioral anomalies requiring public enforcement, not merely private remedy. Financial exploitation within trust relationships triggers immediate civil asset garnishment to make the Vulnerable Party whole. Where the exploitation produced physical harm — infection, unwanted pregnancy, physical injury — the offending party faces criminal liability under Section 5.2(a) for irreversible harm. The principle is consistent across all contexts: the existence of a personal relationship is not a license to exploit the vulnerability that relationship creates.

G.4 — Expressive Conduct: The First Amendment Collision

SEPA Reference	S.E.P.A. Sections 2.1, 2.2(a)(b), 3.2; Constitutional Dimension — First Amendment
Core Asymmetry	Informational authority vs. audience vulnerability; persuasion vs. exploitation of desperation; platform reach vs. individual cognitive susceptibility
Scope	Snake oil health claims; incitement producing localized physical harm; fraudulent persuasion exploiting terminal or acute vulnerability

This subsection addresses the sharpest constitutional tension in the individual application of S.E.P.A.: the collision between the Act's strict-liability prohibition on exploitative conduct and the First Amendment's historically broad protection of expressive activity, including speech that causes harm as a byproduct or even as an intended consequence.

The Act's position on this tension is not that harmful speech is generally regulable. It is narrower and more specific: that when speech is the mechanism of exploitation — when it is deployed to weaponize a Vulnerable Party's specific desperation, fear, or informational dependency for financial or other gain, and the measurable harm flows directly from that exploitation — the speech is not merely expression. It is the instrument of an exploitative act, and it is subject to the same strict liability standard as any other instrument of exploitation.

EXPLOITATIVE BEHAVIOR PATTERN

Behavior: Persuading a terminally or seriously ill person to abandon or delay medically proven treatment in favor of a commercially sold supplement, remedy, or protocol the seller knows has no efficacy; actively inciting a localized crowd to actions producing property damage or physical harm; deploying demonstrably false health or safety claims in a commercial context to exploit a consumer's acute vulnerability.

Application: The American interpretation of the First Amendment heavily protects the act of speech regardless of the damage it causes. S.E.P.A. does not repeal that protection for ordinary expression, opinion, or even harmful rhetoric in the abstract. The Act establishes a narrower principle: speech deployed as the mechanism of exploitation — where the speaker occupies an asymmetric position of informational authority relative to a Vulnerable Party, deploys that authority to direct the Vulnerable Party's behavior toward the speaker's financial gain, and the Vulnerable Party suffers measurable direct harm as a result — is not protected expression. It is the functional equivalent of assault conducted through language. If you use words to convince a cancer patient to buy your supplement instead of receiving chemotherapy, and that patient dies having delayed or forgone treatment, you did not share your opinion. You exploited their terminal desperation for financial gain, and the outcome is lethal.

Systemic Shift / Penalty: The speaker is held strictly liable for the physical harm and the extracted funds. The speech itself is the mechanism of the crime — not the protected content of the expression, but the exploitative use of the asymmetric informational relationship. This distinction requires the OHM's EHI assessment to document: (a) the demonstrable informational asymmetry between speaker and recipient; (b) the financial or other gain extracted by the speaker; and (c) the measurable physical or economic harm to the Vulnerable Party that would not have occurred absent the exploitative communication. Where all three are demonstrated, the strict liability standard applies.

CONSTITUTIONAL NOTE — The Brandenburg-to-Exploitation Bridge

Existing First Amendment doctrine (*Brandenburg v. Ohio*, 1969) protects speech unless it is directed to inciting imminent lawless action and is likely to produce such action. S.E.P.A.'s exploitation standard is not a replacement of *Brandenburg*; it is an adjacent framework that operates where the harm mechanism is not incitement of third-party action but direct exploitation of the listener's vulnerability for the speaker's gain. The constitutional validity of this distinction — speech-as-exploitation vs. speech-as-incitement — will require judicial development. The drafters recommend that the OHM develop specific evidentiary standards for the informational asymmetry and financial extraction elements of the speech-exploitation determination, to provide courts with a measurable framework that reduces the risk of this provision being applied to ordinary persuasion or rhetorical advocacy.

G.5 — The Aggregate Harm Principle

SEPA Reference	S.E.P.A. Sections 2.2(b), 3.2; Section 4.4 (Citizen Enforcement); OHM Pattern Detection Mandate
Core Asymmetry	Individual act below the de minimis threshold vs. coordinated pattern producing aggregate EHI-scoreable harm
Scope	All domains of individual conduct in G.1–G.4; coordinated group behavior below individual liability thresholds

The most significant analytical challenge in applying S.E.P.A. to individual conduct is the gap between individual acts that are below the de minimis liability threshold and coordinated patterns of individual conduct that collectively produce EHI-scoreable harm. This gap is the structural feature that currently makes individual-level systemic harm — harassment campaigns, coordinated discrimination, mob-driven financial destruction — effectively unaddressable under existing law.

The Aggregate Harm Principle, as operationalized through the OHM's pattern detection mandate, addresses this gap by treating coordinated individual conduct as a single Actor system where the aggregate output meets the EHI threshold, and distributing liability across the participants in proportion to their documented contribution to the aggregate harm.

Individual Act (Below Threshold)	Coordination Mechanism	Aggregate Outcome (EHI-Scoreable)
Single negative online review (legitimate)	Coordinated a fake-review campaign organized via a private channel	Business destruction; owner psychological harm; employee job loss
Single 911 call (reported suspicious activity)	Pattern of racially targeted calls from the same neighborhood coalition	Cumulative psychological harm, civil rights violation, community destabilization
Single social media post expressing political opinion	Coordinated amplification campaign deploying known disinformation to incite localized violence	Physical harm to the targeted group; property damage; community trauma
Single zoning board objection (good-faith concern)	Coordinated multi-objector procedural delay spanning years	Sustained homelessness; documentable mortality from housing insecurity
Single MLM pitch to a friend	Systematic exploitation of the community network to enroll 40 households in a loss-generating scheme	Aggregate financial harm across the community, relationship destruction, and psychological harm

In each of the above patterns, the individual act in the first column is either legally protected or below the de minimis threshold. The coordination mechanism in the second column is the exploitative asymmetry — the organized group exploiting the numerical, procedural, or informational advantage of coordination against an isolated target or community. The aggregate outcome in the third column is the EHI-scoreable harm that triggers liability.

Under the Aggregate Harm Principle:

- (a) Organizers of coordinated harm campaigns bear primary liability for the full EHI-calculated aggregate harm;
- (b) Knowing participants who took material action in furtherance of the campaign bear proportional liability calibrated to the measurable contribution of their specific act to the aggregate outcome;
- (c) Passive amplifiers — individuals who shared, retweeted, or otherwise forwarded coordinated campaign material without knowing it was part of an organized harm campaign — are below the liability threshold unless they continued participation after receiving actual notice of the campaign's exploitative character; and
- (d) Platforms that algorithmically amplified a coordinated harm campaign bear co-liability for the amplification delta, as specified in the Drafting Note in Section G.1.

OHM IMPLEMENTATION — Pattern Detection Mandate

The Aggregate Harm Principle requires the OHM to maintain a continuous, privacy-protective pattern detection system capable of identifying coordinated individual conduct that produces aggregate EHI-scoreable harm. This system must be designed to detect coordination patterns — timing, content similarity, network topology of amplification — without constituting a general surveillance apparatus over protected individual expression. The OHM is required to publish its pattern detection methodology, submit it to independent peer review, and subject it to an annual civil liberties audit by a panel that includes representatives of digital rights organizations. The risk of this tool being turned against legitimate collective action — labor organizing, protest coordination, advocacy campaigns — is a real and serious design constraint that the OHM must address structurally in its implementation architecture.

ADDENDUM G — CONCLUSION: THE BLAST RADIUS OF INDIVIDUAL CONDUCT

The application of S.E.P.A.'s strict liability framework to individual citizens removes the central moral fiction of rugged individualism as it has functioned in American legal culture: the claim that individual actions are essentially self-contained, that their effects are the private responsibility of those who choose to be affected, and that the law has no business tracing the causal chain from individual conduct to community harm.

S.E.P.A. replaces that fiction with a systems engineering reality: individual actions have measurable blast radii. A bad-faith 911 call has a radius. A coordinated harassment campaign has a radius. A predatory MLM pitch in a community where the recruiter holds social authority has a radius. The law does not require that the individual intended the full extent of the blast radius. It requires only that the individual exploited a structural asymmetry — of numbers, of state access, of trust, of informational authority — in a way that produced harm to a Vulnerable Party who had no equivalent power to refuse, exit, or defend.

This is not a novel moral principle. It is the foundational principle of tort law, applied with the consistency and rigor that the complexity and scale of contemporary harm require. The individual who calls the police on a Black man for sitting in a park, the individual who joins a coordinated harassment campaign because they find the target annoying, the individual who recruits their neighbor into an MLM scheme because they believe in it — none of these individuals currently face meaningful legal accountability for the harm their conduct produces. S.E.P.A. ends that impunity, not by criminalizing individual behavior categorically, but by requiring every Actor — individual or institutional — to internalize the full cost of the damage they cause when they exploit the structural advantages they possess over those who have less.

RELATIONSHIP TO ADDENDA A–F

Individual citizen exploitation does not operate in a vacuum. In almost every pattern described in this Addendum, the individual's exploitative capacity is enabled, amplified, or incentivized by the institutional exploitation documented in Addenda A through F. The bad-faith 911 caller is enabled by a police culture that systemically responds to race-based calls without accountability. The MLM recruiter is a vector for a corporate exploitation architecture. The NIMBY coalition is executing a strategy whose political cover is manufactured by legislators who benefit from property-value protection. S.E.P.A.'s full enforcement framework — operating simultaneously at the institutional and individual level — is designed to address both the enabling architecture and its individual-level expressions.